

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

12. HAYLEY SCHULZ V. TREVOR HARDING

23FL0002

On January 30, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. All required documents were served by mail on February 7th.

Petitioner filed and served a Responsive Declaration to Request for Order on April 8, 2026.

The parties attended Child Custody Recommending Counseling (CCRC) on February 26, 2026. They were unable to reach agreements therefore a report was prepared on April 9, 2026. It was mailed to the parties on April 10th.

Respondent is requesting increased parenting time with the children. He asks that the parties attend mediation.

Petitioner opposes the request. She also opposes a request for child support but there is no such request pending before the court. She requests sole legal and sole physical custody of the children and she asks that Respondent have supervised visits. She asks the court to order that missed visits do not result in make-up time and to restrict Respondent's ability to transport the children due to safety concerns. Finally, she asks that she be allowed to claim the children on her taxes each year.

After reviewing the filings as outlined above, the court finds the recommendations contained in the April 9, 2026 CCRC report to be in the best interests of the minors. They are hereby adopted as the orders of the court. Respondent is admonished to abide by the set schedule. If Respondent is going to miss a visit, he must provide Petitioner with at least 72 hours notice prior to the missed visit. Failure to provide notice at least 72 hours ahead of time will result in a missed visit with no make-up visit. If Respondent does give timely notice of the missed visit then the parties shall work together to schedule a make-up visit.

Petitioner's request to claim the children on her taxes is granted.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #12: THE COURT FINDS THE RECOMMENDATIONS CONTAINED IN THE APRIL 9, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. RESPONDENT IS ADMONISHED TO ABIDE BY THE SET SCHEDULE. IF RESPONDENT IS GOING TO MISS A

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VISIT, HE MUST PROVIDE PETITIONER WITH AT LEAST 72 HOURS NOTICE PRIOR TO THE MISSED VISIT. FAILURE TO PROVIDE NOTICE AT LEAST 72 HOURS AHEAD OF TIME WILL RESULT IN A MISSED VISIT WITH NO MAKE-UP VISIT. IF RESPONDENT DOES GIVE TIMELY NOTICE OF THE MISSED VISIT THEN THE PARTIES SHALL WORK TOGETHER TO SCHEDULE A MAKE UP VISIT.

PETITIONER'S REQUEST TO CLAIM THE CHILDREN ON HER TAXES IS GRANTED.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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13. JUAN CHAVEZ V. SHIANNE HUNSAKER

PFL20130587

Petitioner filed a Request for Order (RFO) on November 10, 2025, seeking modification of child custody and parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on December 10, 2025, and a review hearing on February 5, 2026. Respondent was mail served with address verification in accordance with Family Code section 215.

Parties appeared for the hearing on February 5, 2026. The court did not adopt its tentative ruling but rather rereferred the parties to CCRC and set a further review hearing. The court directed Petitioner to provide Proof of Service showing Respondent was properly served and cautioned that the matter would be dropped from calendar if Petitioner failed to do so.

Petitioner filed a Proof of Service on February 10, 2026, showing proper service on Respondent.

Respondent filed a new Responsive Declaration on March 18, 2026. It was served on Petitioner on the same day. Respondent requests the current orders remain in full force and effect.

Both parties and the minor attended CCRC. The parties were able to reach several agreements. A report with the parties' agreements and further recommendations was filed with the court on April 7, 2026. Copies were mailed to the parties the same day.

The court has read and considered the filings as outlined above. The court finds the agreements and recommendations as set forth in the April 7th CCRC report to be in the best interest of the minor. The court adopts the agreements and recommendations as set forth.

All prior orders not in conflict with this order remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #13: THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS AS SET FORTH IN THE APRIL 7TH CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE AGREEMENTS AND RECOMMENDATIONS AS SET FORTH. ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS